

Law English

Participant workbook: client-safe language, legal terminology, research discussion, contracts, discovery, compliance, and advocacy practice

Audience: advanced ESL learners working in law, compliance, contracts, litigation support, legal operations, and related business roles

Focus: high-level professional English for legal workplaces, including client intake, confidentiality, privilege, litigation, discovery, legal writing, contracts, compliance, negotiation, advocacy, and realistic law-office dialogue.

Designed for advanced ESL learners who already work in law, compliance, contracts, legal operations, paralegal support, or law-adjacent business roles and need field-specific fluency.

Teaching stance: this is legal English training, not legal advice. Laws, procedures, professional rules, and court practices vary by jurisdiction and role. Learners should practice language, judgment, and documentation habits while relying on qualified counsel and local rules for legal conclusions.

How to Use This Workbook

This workbook helps you speak and write more precisely in legal workplaces. The goal is not to sound dramatic or overly formal. The goal is to protect meaning: facts, legal issues, authority, uncertainty, confidentiality, risk, and next steps.

Your starting point

- Which legal conversations are hardest for you: client intake, partner updates, contract markups, discovery calls, research memos, compliance reviews, settlement, or hearings?
 - Which legal terms do you understand when reading but avoid when speaking?
 - When someone pressures you for a quick answer, do you become too vague, too certain, too indirect, or too technical?
 - What is one recent legal-workplace sentence you wish you had phrased more carefully?
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Legal Matter Language

Layer	Useful verbs	Example sentence
Facts	gather, confirm, preserve, document, verify	We need to confirm the timeline before assessing exposure.
Issues	identify, frame, narrow, separate, prioritize	The immediate issue is whether the deadline has been triggered.
Authority	research, cite, distinguish, reconcile, update	The case is persuasive, but not binding in this jurisdiction.
Procedure	file, serve, move, oppose, object, compel	We may need to move to compel if the production remains incomplete.
Contracts	draft, redline, negotiate, accept, reserve	We can accept the concept if the indemnity is capped.
Risk	assess, quantify, mitigate, escalate, disclose	The legal risk is moderate, but the reputational risk may be higher.

Practice Pages

Module 1. Legal English Mindset: Facts, Issues, Rules, Risk

Legal English is precise because legal work turns on small distinctions: fact vs allegation, argument vs holding, risk vs conclusion, and client goal vs legal theory.

What you should be able to do

- Separate facts, assumptions, allegations, issues, rules, analysis, and conclusions.
- Use careful caveat language without sounding weak.
- Convert vague business questions into legally answerable questions.

Practice task

Situation

A business leader asks, 'Can we sue them?' Rewrite the question into facts needed, legal issues, possible remedies, and a responsible next-step response.

Facts, authority, and missing information

Careful professional language

Final legal-workplace response

Module 2. Client Intake, Scope, Conflicts, and Confidentiality

The first conversation can create legal, ethical, and business risk. Legal professionals must gather facts, preserve confidentiality, check conflicts, define scope, and avoid premature promises.

What you should be able to do

- Conduct an intake conversation with empathy and control.
- Use role-appropriate language around confidentiality, conflicts, privilege, and engagement.
- Summarize facts and next steps without creating an unintended commitment.

Practice task

Situation

A potential client calls with an urgent dispute. Draft your first five intake questions and a careful sentence about conflicts, scope, and document review.

Facts, authority, and missing information

Careful professional language

Final legal-workplace response

Module 3. Litigation Lifecycle: Pleadings, Motions, Deadlines, Strategy

Litigation conversations are shaped by procedure. Learners need language for complaints, answers, affirmative defenses, motions, orders, discovery, settlement, trial, judgment, and appeal.

What you should be able to do

- Explain the basic lifecycle of a civil litigation matter.
- Discuss pleadings, motions, jurisdiction, venue, deadlines, and remedies.
- Ask strategy questions that connect legal theory to evidence and client goals.

Practice task

Situation

A partner asks for a litigation status update. Write a concise update covering pleadings, deadlines, pending motions, discovery, and next risk.

Facts, authority, and missing information

Careful professional language

Final legal-workplace response

Module 4. Discovery, ESI, Privilege Review, and Depositions

Discovery is language-heavy and risk-heavy. Teams must negotiate scope, preserve evidence, collect ESI, review privilege, prepare witnesses, and object without becoming unprofessional.

What you should be able to do

- Use discovery terminology in meet-and-confer calls and internal updates.
- Explain proportionality, burden, relevance, privilege, work product, and preservation.
- Prepare and debrief a deposition using clear, ethical language.

Practice task

Situation

Opposing counsel sends overbroad discovery requests. Draft a meet-and-confer response that is firm, professional, and record-conscious.

Facts, authority, and missing information

Careful professional language

Final legal-workplace response

Module 5. Legal Research, Authority, and Memo Writing

Legal writing requires a hierarchy of authority and disciplined reasoning. A persuasive answer shows the issue, rule, relevant facts, contrary authority, and practical recommendation.

What you should be able to do

- Distinguish statute, regulation, case law, binding authority, persuasive authority, holding, dicta, and standard of review.
- Write a focused research question and a useful short answer.
- Present legal uncertainty without burying the conclusion.

Practice task

Situation

You find a case that hurts the client's position. Write a short memo paragraph explaining the contrary authority and how it might be distinguished.

Facts, authority, and missing information

Careful professional language

Final legal-workplace response

Module 6. Contracts, Redlines, and Negotiation

Contract English is technical and strategic. Learners need to discuss obligations, risk allocation, remedies, negotiation posture, and business fallback positions.

What you should be able to do

- Use contract terms such as representation, warranty, covenant, condition, indemnity, limitation of liability, termination, governing law, and dispute resolution.
- Explain why a clause matters without over-legalizing the business conversation.
- Negotiate redlines with firm but professional language.

Practice task

Situation

A sales leader wants to accept a broad indemnity. Write a business-friendly explanation of the risk and propose two fallback positions.

Facts, authority, and missing information

Careful professional language

Final legal-workplace response

Module 7. Corporate, Compliance, Regulatory, and Investigation Language

In-house and regulatory legal work often requires risk judgment under imperfect facts. Learners need language for materiality, disclosure, due diligence, governance, investigation, remediation, and enforcement.

What you should be able to do

- Discuss compliance issues using evidence, policy, exposure, materiality, and remediation language.
- Ask investigation questions that preserve documents and avoid contaminating witness accounts.
- Brief business leaders without turning uncertainty into either alarm or reassurance.

Practice task

Situation

A marketing claim may be unsupported. Write a compliance review note identifying express claim, implied claim, evidence gap, and safer alternative.

Facts, authority, and missing information

Careful professional language

Final legal-workplace response

Module 8. Advocacy, Settlement, Ethics, and Professional Judgment

Legal professionals need persuasive language that stays accurate, ethical, and client-centered. Strong advocacy does not mean overclaiming; strong settlement posture does not mean hiding risk from the client.

What you should be able to do

- Use advocacy language in oral argument, mediation, settlement, and client counseling.
- Respond to difficult questions from judges, partners, clients, opposing counsel, and regulators.
- Recognize when professional responsibility concerns require escalation.

Practice task

Situation

A judge asks the hardest question about your argument. Draft a direct answer, supporting reason, and fallback position.

Facts, authority, and missing information

Careful professional language

Final legal-workplace response

Phrase Bank

Careful legal conclusions

- Based on the facts we have now, the stronger argument appears to be...
- That conclusion depends on jurisdiction, procedural posture, and several facts we still need to confirm.
- I would not characterize this as settled law without checking controlling authority.
- The business risk is clear, but the legal exposure needs more factual development.

Client intake and scope

- Before we discuss strategy, I need to gather facts and confirm there is no conflict.
- I can explain the process, but I cannot give a legal conclusion until we review the documents.
- That issue may be outside the current scope, so we should confirm whether you want us to evaluate it.
- Please do not send privileged or sensitive materials until we confirm the proper channel and scope.

Research and writing

- What jurisdiction, deadline, procedural posture, and intended audience should guide the research?
- The short answer is yes, but with two important limitations.
- The best authority is binding, but the facts are distinguishable.
- There is contrary persuasive authority, so I would frame the conclusion as moderate rather than strong.

Discovery and privilege

- We object to the request as overbroad and disproportionate as drafted.
- We are willing to discuss targeted custodians, search terms, date ranges, and document categories.
- This may involve legal advice, but we should escalate the privilege call rather than assume.
- Please preserve potentially relevant documents and do not alter or delete related communications.

Contracts and negotiation

- Our concern is not the wording alone; it is the risk allocation behind the wording.
- We can accept the concept if the clause includes a cap, a defined scope, and an exclusion for indirect damages.
- That is not our preferred position, but a possible fallback is...
- I need business approval before accepting uncapped liability or an open-ended indemnity.

Advocacy and settlement

- Respectfully, Your Honor, the record supports a narrower point.
- The strongest point for the other side is..., but our response is...
- Settlement avoids litigation cost and uncertainty, but it also requires acceptable non-monetary terms.
- We can recommend a range, but the client must approve settlement authority.

Personal Action Plan

Situation	Term or phrase I will practice	Evidence I used it well